

26STCP02594 26STCP02594

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Case Number: 26STCP02594 Hearing Date: September 8, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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GRACIELA ORTIZ,

Petitioner(s),

vs.

CITY OF HUNTINGTON PARK, et al.,

Respondent(s).

Case No.:

26STCP02594

Hearing Date:

September 8, 2026

[TENTATIVE] RULING ON PETITION
FOR WRIT OF MANDATE

Graciela Ortiz ("Petitioner") petitions for a writ of traditional mandate against respondents City of Huntington Park ("City"), Arturo Flores ("Flores"), Eduardo Martinez ("Martinez"), Jonathan Sanabria ("Sanabria") and Nancy Martiz ("Martiz") (collectively, "Respondent") directing Respondents to repeal City Ordinance 2026-04 and prohibiting them from proceeding with by-district elections.

The petition is denied.

I.

Factual Background

On October 14, 2025, the Huntington Park City Council ("Council") voted to adopt Resolution No. 2025-32 to initiate the process of establishing Council District Areas and to hold elections by district. (Ortiz Decl., ¶ 18; Sarmiento Decl., ¶ 3, Ex. A.)

On February 24, 2026, the Council voted to adopt Ordinance No. 2026-04, amending sections of the Huntington Park Municipal Code ("HPMC") to, among other things, set the dates of general municipal elections to coincide with statewide general elections, change the previous at-large election system to a by-district system, and set lifetime term limits to four full consecutive terms. (Ortiz Decl., ¶ 21.)

On June 9, 2026, the Council adopted Resolution No. 2026-25, submitting a ballot measure to City voters to establish a lifetime limit for councilmembers. (Ortiz Decl., ¶ 23; RJN Ex. 5.)

On June 23, 2026, the Council adopted Resolution No. 2026-28, ordering elections to be held on Tuesday, November 3, 2026 for Districts 4 and 5, as well as a special election for District 2 to fill the remainder of the unexpired term originally held by Esmeralda Castillo ("Castillo"), with these elections consolidated with the statewide general election. (Ortiz Decl., ¶ 24; Sarmiento Decl., ¶ 4, Ex. B.)

II.

Procedural History

On July 8, 2026, Petitioner filed

her “Verified Petition for Writ of Mandate and Complaint for Declaratory and Injunctive Relief” (“Petition”). A proof of service filed July 22, 2026 shows Petitioner served the Petition on the City by personal service on July 21, 2026. There are no proofs of service for Flores, Martinez, or Martiz, or any answer on file. However, counsel has appeared on behalf of all Respondents.

On July 14, 2026, Petitioner filed an ex parte application seeking an alternative and/or peremptory writ of mandate and an order to show cause requiring the City to conduct the November 3, 2026 municipal election on an at-large basis rather than under the newly adopted by-district system. Petitioner also requested an accelerated briefing schedule and an expedited writ hearing no later than July 24, 2026, asserting that immediate intervention was necessary to prevent voter disenfranchisement and preserve orderly election administration. On July 15, 2026, the Court denied the application for failure to make the showing required for ex parte relief under CRC rule 3.1202(c). However, given Respondent’s agreement to shortened notice, the Court set the writ hearing for September 8, 2026, and ordered Petitioner to file her opening brief by July 27, 2026, Respondent’s opposition by August 17, 2026, and Petitioner’s reply by August 27, 2026. The Court also directed Petitioner’s counsel to lodge a trial notebook by August 31, 2026.

On August 5, 2026, Petitioner filed a renewed ex parte application seeking a TRO to (1) prevent the City from disqualifying her as a candidate for the November 3, 2026 special election for the unexpired term, and (2) stop the City from conducting that special election using by-district voting. In the alternative, Petitioner asked the Court to advance the writ hearing to no later than August 7, 2026 (i.e., the day after the ex parte was noticed for hearing), asserting that the City’s refusal to issue her nomination papers constituted immediate and irreparable harm. On August 6, 2026, the Court denied the application, finding Petitioner had not established irreparable harm or any statutory basis for ex parte relief under CRC rule 3.1202(c), and noting that the alleged emergency stemmed from Petitioner’s own delay and that the sweeping mandatory relief sought was not appropriate for ex parte treatment while the merits remained set for hearing on September 8, 2026.

Petitioner filed an opening brief and supporting papers on July 28, 2026, one day late. Respondent filed opposition papers on August 17, 2026. To date, Petitioner has not filed a reply

or lodged a trial notebook as ordered.

III.

Standard of Review

Petitioner seeks relief pursuant to Code of Civil Procedure (“CCP”) section 1085. A party may seek to set aside an agency decision by petitioning for either a writ of administrative mandamus (CCP § 1094.5) or traditional mandamus (CCP § 1085).

A petition for traditional mandamus is appropriate in all actions “to compel the performance of an act which the law specially enjoins as a duty resulting from an office, trust, or station” (CCP § 1085; see *Rodriguez v. Solis* (1991) 1 Cal.App.4th 495, 501-02.) Mandamus will lie when (1) there is no plain, speedy, and adequate alternative remedy, (2) the respondent has a duty to perform, and (3) the petitioner has a clear and beneficial right to performance. (*Pomona Police Officers’ Assn. v. City of Pomona* (1997) 58 Cal.App.4th 578, 583-84 [internal citations omitted].)

“Generally, mandamus is available to compel a public agency’s performance or to correct an agency’s abuse of discretion when the action being compelled or corrected is ministerial...” (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) Whether a statute imposes a ministerial duty for which mandamus is available, or a mere obligation to perform a discretionary function, is a question of statutory interpretation. (*Id.* at 701.)

In the absence of a ministerial duty, traditional mandamus relief is unavailable unless the petitioner can demonstrate an abuse of that discretion. (See *CV Amalgamated LLC v. City of Chula Vista* (2022) 82 Cal.App.5th 265, 278-79.) An agency decision is an abuse of discretion only if it is “arbitrary, capricious, entirely lacking in evidentiary support, unlawful, or procedurally unfair.” (*Kahn v. Los Angeles City Employees’ Retirement System* (2010) 187 Cal.App.4th 98, 106.) In applying this deferential test, a court “must ensure that an agency has adequately considered all relevant factors, and has demonstrated a rational connection between those factors, the choice made, and the purposes of the enabling statute.” (*Western States Petroleum Assn v. Superior Court* (1995) 9 Cal.4th 559, 577.) In making this determination, the court may not

substitute its judgment for that of the agency, whose decision must be upheld if reasonable minds may disagree as to its wisdom. (Manjares v. Newton (1966) 64 Cal.2d 365, 371.) In other words, traditional mandamus is only available when an agency's discretion can be exercised only in one way. (Hurtado v. Superior Court (1974) 11 Cal.3d 574, 579.)

In a petition for writ of mandate brought under CCP section 1085, "the petitioner bears the burden of pleading and proving the facts on which the claim for relief is based." (California Correctional Peace Officers Assn. v. State Personnel Bd. (1995) 10 Cal.4th 1133, 1153.)

IV.

Evidentiary Matters

1.

Evidentiary Objections

Respondent objects to the portions of the Ortiz Declaration. Respondent's objection to paragraph 30 is granted for lack of foundation. The remaining objections are overruled. The evidence is admitted. The Court will afford the evidence its proper weight.

2.

Request for Judicial Notice

Petitioner seeks judicial notice of the following exhibits: (1) Council Resolution No. 2025-06 (RJN Ex. 1); (2) a City press release from June 2, 2026 describing the Council appointment of Martiz (RJN Ex. 2); (3) Respondent's opposition to Valentin Amezquita's Petition for Writ of Mandate, case no. 25STCP01557 ("Amezquita") (RJN Ex. 3); (4) Council Resolution No. 2025-32 (RJN Ex. 4); (5) City Ordinance No. 2026-04 (RJN Ex. 5); (6) Council Resolution No. 2026-25 (RJN Ex. 6); (7) Council Resolution No. 2026-28 (RJN Ex. 7); (8) A page from the City's website showing City demographics (RJN Ex. 8); (9) the Los Angeles County Registrar-Recorder/County Clerk Calendar of Events relating to the general election on November 3, 2026 (RJN Ex. 9).

Respondent objects to Requests 4 and 7 because the exhibits are draft resolutions rather than the enacted

resolutions. Respondent does not, however, object to judicial notice of Resolution Nos. 2025-32 and 2026-28 as enacted.[1] Accordingly, the Court judicially notices Resolution Nos. 2025-32 and 2026-28 as enacted. (Evid. Code § 452(c).)

Respondent also objects to Request 3, seeking to limit judicial notice to the existence and contents of its opposition in Amezquita, to the exclusion of the truth of its contents. While nothing suggests Petitioner intended to seek judicial notice of the truth of the contents, Respondent is correct as to the proper limits on judicial notice of a court filing. The Court judicially notices the documents at Request 3 for their existence and contents, but not for their truth. (Evid. Code § 452(d).)

Finally, Respondent objects to Request 8, the City's demographics webpage. Respondent's objection goes to the weight and significance of the demographic data, not to its noticeability. Request 8 is granted. (Evid. Code § 452(h).)

The remaining requests are granted. (Evid. Code §§ 452(b), (c).)

V.

Analysis

Petitioner seeks a writ compelling the City to repeal Ordinance 2026-04; invalidate the City's shift from at-large to district elections for the November 3, 2026 municipal election; require that same election to be conducted at-large; require the special election for the unexpired term of Esmeralda Castillo (now designated as District 2) to be conducted at-large; and prohibit the Council from enacting district elections without submitting the question to the voters.

1.

Respondent Had Authority to Adopt a By-District Election System

Petitioner asserts that Respondent unlawfully relied on Government Code section 34886 to adopt a by-district election system without voter approval. Specifically, Petitioner contends that section

34886 provides a narrow exception allowing cities to adopt a by-district election system by ordinance, and Respondent did not satisfy the statute's necessary criteria.

Government Code section 34871

provides that the legislative body of a city "may submit" to its registered voters an ordinance establishing a district-based election system. (Gov. Code § 34871.) Government Code section 34886, in contrast, provides that "notwithstanding [s]ection 34871," a city "may adopt" such an ordinance [2] without voter approval. (Gov. Code § 34886.) When proceeding under section 34886, the ordinance must comply with Elections Code section 21130 and must include a declaration that the election system change is made in furtherance of the purposes of the California Voting Rights Act of 2001, Elections Code section 14025, et seq. ("CVRA"). (Gov. Code § 34886.) The parties cite no authority interpreting section 34886, and the Court has not located any.

Petitioner does not allege that Respondent failed to comply with Elections Code section 21130. (See generally Pet. Op. Br.) Nor does Petitioner claim that Respondent omitted the declaration required by section 34886. (See generally Pet. Op. Br.) Rather, Petitioner argues that "the conditions for the City lawfully invoking the CVRA's protections do not exist to justify the City Council changing by ordinance the City's voting system to a by-district system." (Pet. Op. Br. at 6.) Specifically, Petitioner argues:

"[C]ircumventing voter approval under Government Code §34886 is allowed only where it is necessary to comply with the CVRA and avoid litigation under CVRA in which it is claimed that the City-wide at large system dilutes the votes of a protected class of minority voters and gives them no fair opportunity to elect a representative of their choosing." (Pet. Op. Br. at 5.)

Petitioner contends that there is no record of Respondent receiving any threat of litigation under the CVRA and no reasonable basis to anticipate such litigation given that the City's demographic composition is over 95% Hispanic, about 3% White, and no other group comprising more than 1% of the population. (Pet. Op. Br. at 6.) Therefore, under Petitioner's reading of section 34886, Respondent lacked authority to invoke that statute.

As a threshold matter, the plain text of section 34886 does not support the construction Petitioner advances. The statute states only:

“An ordinance adopted pursuant to this section shall comply with the requirements and criteria of Section 21130 of the Elections Code and include a declaration that the change in the method of electing members of the legislative body is being made in furtherance of the purposes of the California Voting Rights Act of 2001 (Chapter 1.5 (commencing with Section 14025) of Division 14 of the Elections Code).”

(Gov. Code § 34886.)

In other words, the statute itself contains no requirement that a city produce evidence of racially polarized voting, demonstrate vote dilution, or receive threats or demands under the CVRA. (Gov. Code § 34886.) It requires only compliance with Elections Code section 21130 and the inclusion of a CVRA-purpose declaration. Respondent included such a declaration in Resolution No. 2025-32. (Sarmiento Decl., Ex. A.) Petitioner does not allege otherwise.

Even assuming the accuracy of Petitioner's demographic assertions, Petitioner identifies no CVRA language suggesting that certain demographic compositions render the CVRA inapplicable or irrelevant. (See Pet. Op. Br. at 4-7.) Nor does Petitioner cite any authority interpreting the CVRA to impose demographic or evidentiary prerequisites before a city may rely on section 34886. (See Pet. Op. br. at 6-7.)

Section 34886 imposes no additional ministerial duty beyond compliance with Elections Code section 21130 and inclusion of a declaration. Petitioner does not allege that Respondent failed either duty. Section 34886 also imposes no discretionary obligations capable of judicial review for abuse of discretion. Accordingly, Petitioner identifies no legal basis for invalidating Ordinance 2026-04 or compelling Respondent to revert to an at-large election system.

2.

Respondent May Hold the Special Election Under

the By-District Election System

Petitioner asserts that Respondent must hold the special election to fill the remainder of Castillo's unexpired term on an at-large basis because Castillo was elected at-large in 2024. Petitioner contends that the constituency for an elective office—here, the entire City rather than the “new” district—must remain unchanged throughout the full term of that office, including any special election to fill a midterm vacancy. Petitioner relies on *Sloan v. Donoghue* (1942) 20 Cal.2d. 607 (“Sloan”), Attorney General Opinion No. 1301103 (2014) (“AG Opinion”), and Elections Code section 21606, subdivision (b).

In *Sloan*, a member of congress elected in 1940 died in the middle of his term. (*Sloan*, supra, 20 Cal.2d. at 608.) During its 1941 regular session, the state legislature redrew California's district boundaries. (*Ibid.*) On April 8, 1942, the Attorney General ordered a special election to fill the vacancy for the remainder of the late congressman's term and determined that the election should be held using the 1940 district boundaries. (*Id.* at 608-609.) The California Supreme Court considered whether the special election should proceed under the 1940 district (as it existed at the time of election) or the 1942 district (as it existed at the time of the special election proclamation). (*Id.* at 609.) The Court held that the vacancy election must occur under the 1940 district boundaries. (*Ibid.*) The Court reasoned that “[n]othing in the Apportionment Act of 1941 indicates that it was intended to apply to special elections held to fill vacancies arising in terms occupied at the time of its passage. It was intended to apply to the next general election and succeeding elections.” (*Id.* at 611.) The Court also noted that doing otherwise might produce irrational results, including that some populations would be doubly represented while others would be unrepresented. (*Id.* at 612.)

Respondent argues that *Sloan* does not control the instant matter. The Court agrees. First, Huntington Park did not redraw existing district boundaries; it transitioned from an at-large system to a by-district system. That circumstance does not create the representational alterations that concerned the *Sloan* Court. Second, *Sloan* expressly relied on legislative silence regarding whether newly drawn boundaries applied to midterm vacancies. (*Id.* at 611 [“Nothing in the Apportionment Act of 1941 indicates that it was intended to apply to special elections”].) Here, the City Council acted under statutory authority and

adopted Resolution No. 2025-32 initiating the transition to district elections “commencing with the 2026 Council election.” (Sarmiento Decl., Ex. A.) The local legislative body (the Council)—rather than the executive as in Sloan (Sloan at 608-09)—called for the special election through Ordinance No. 2026-28. (Sarmiento Decl., Ex. B.) To the extent that initiating resolution 2025-32 might be considered silent, Ordinance No. 2026-28 makes clear the Council intended the by-district system to apply to the vacancy election. (Ibid.) Accordingly, Sloan is distinguishable. And even if Sloan were considered analogous, its principle of respecting the legislative choice concerning the boundaries that govern a special election supports deferring to the Council’s determination. (See Sloan, *supra*, 20 Cal.2d at 611.)

Petitioner’s reliance on the AG

Opinion as an extension of Sloan is also misplaced. That opinion addressed a city already electing councilmembers by district whose district boundaries were redrawn midterm. In that context, the Attorney General concluded that the special election should proceed under the prior district boundaries. The AG Opinion is distinguishable for the same reasons as Sloan; Huntington Park did not alter previously existing district boundaries midterm but adopted district elections for the first time. Petitioner also cites Elections Code section 21606, subdivision (b),^[3] asserting that it “explicitly recognizes” the rule from Sloan and the AG Opinion. But Petitioner conspicuously fails to address that subdivision (b) itself provides that it “does not apply when a city transitions from at-large to district-based elections.” (Elec. Code § 21606, subd. (b).) By its own terms, section 21606(b) does not apply to the circumstances here. This statutory exclusion further confirms that neither Sloan nor the AG Opinion governs this case.

For the foregoing reasons,

Petitioner has not shown Respondent had any ministerial duty to conduct the special election as an at-large election and has not shown the decision to conduct the special election under the newly-adopted by-district system was arbitrary, capricious, or an abuse of discretion.

VI.

Conclusion

Based on the foregoing, the petition

for traditional mandamus is DENIED. Pursuant to Local Rule 3.231(n), respondent City of Huntington Park shall prepare, serve, and ultimately file a proposed judgment.

Date: September 8, 2026

HON.

TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The Court notes that the enacted resolutions appear identical in content to the documents provided by Petitioner, with the notable exception that the draft of

Resolution No. 2026-28 contains references to District 3 which, in the enacted Resolution No. 2026-28, now reference District 2.

[2]

Government Code section 34871 provides for several possible elections configurations, including “by districts” and “from districts” with an odd number of districts not less than five and not more than nine, or “by districts” and “from districts” with an even number of districts not less than four and not more than eight in addition to an elective mayor. (Gov. Code § 34871.) The provisions of Government Code section 34886 apply only to elections “by districts.”

[3]

Respondent makes a reasonable argument that 21606, subsection (a) should not apply because it protects elected councilmembers from changes in constituency, and would not apply to a successor. As Petitioner only raises subsection (b), Petitioner has waived any claim under subsection (a), and the Court need not address the matter.